

GINSBURG, J., dissenting

the limited overlap between federal and state criminal law. *All Assets of G. P. S. Automotive*, 66 F. 3d, at 498 (Calabresi, J., concurring). In the last half century, however, federal criminal law has been extended pervasively into areas once left to the States. Guerra, *The Myth of Dual Sovereignty: Multijurisdictional Drug Law Enforcement and Double Jeopardy*, 73 N. C. L. Rev. 1159, 1165–1192 (1995); Brief for Sen. Orrin Hatch as *Amicus Curiae* 8–14. This new “age of ‘co-operative federalism,’ [in which] the Federal and State Governments are waging a united front against many types of criminal activity,” *Murphy*, 378 U. S., at 55–56, provides new opportunities for federal and state prosecutors to “join together to take a second bite at the apple,” *All Assets of G. P. S. Automotive*, 66 F. 3d, at 498 (Calabresi, J., concurring).³ This situation might be less troublesome if successive prosecutions occurred only in “instances of peculiar enormity, or where the public safety demanded extraordinary rigor.” *Fox*, 5 How., at 435. The run-of-the-mill felon-in-possession charges Gamble encountered indicate that, in practice, successive prosecutions are not limited to exceptional circumstances.

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Against all this, there is little to be said for keeping the separate-sovereigns doctrine. Gamble’s case “do[es] not implicate the reliance interests of private parties.” *Alleyne*, 570 U. S., at 119 (SOTOMAYOR, J., concurring). The closest thing to a reliance interest would be the interest Federal and State Governments have in avoiding avulsive changes that could complicate ongoing prosecutions. As the Court correctly explains, however, overruling the separate-sovereigns doctrine would not affect large numbers of cases. See *ante*,

³ *Bartkus v. Illinois*, 359 U. S. 121 (1959), left open the prospect that the double jeopardy ban might block a successive state prosecution that was merely “a sham and a cover for a federal prosecution.” *Id.*, at 123–124. The Courts of Appeals have read this potential exception narrowly. See, e. g., *United States v. Figueroa-Soto*, 938 F. 2d 1015, 1019 (CA9 1991).